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March 5, 2026

COMMITTEE SUBSTITUTE
FOR

SENATE BILL NO. 1241

By: Coleman of the Senate

and

Fetgatter of the House

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[ ticket sales - bot - requirements - resale -
transferability - policies - refund - contact
information - use or display - affiliations -
violations - civil action - noncodification -
codification - effective date ]
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BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law not to be
codified in the Oklahoma Statutes reads as follows:

This act shall be known and may be cited as the "Oklahoma Fraud and Ticketing Accountability Act".

SECTION 2. AMENDATORY Section 1, Chapter 218, O.S.L.
2023 (15 O.S. Supp. 2025, Section 774), is amended to read as
follows:

Section 774. As used in ~~this act~~ Section 774 et seq. of this
title:

1 1. "Admission ticket" means any physical, electronic, or other
2 form of evidence of a right of entry to a venue or an entertainment
3 event for one or more events at a specified date and time;

4 2. "Bot" means any machine, device, computer program,
5 artificial intelligence, or software that bypasses security measures
6 or ticket purchase limits, alone or with human assistance, to
7 acquire admission tickets on a retail platform;

8 3. "Event" means a concert, theatrical performance, sporting
9 event, exhibition, show, or other similar activity held in this
10 state;

11 4. "Face value" means a price printed on the admission ticket
12 or listed by the primary ticket seller at the point of initial sale,
13 excluding taxes, service fees, or delivery charges;

14 ~~3.~~ 5. "Initial sale" means the first sale of an admission
15 ticket by the ticket seller, which may include the distribution of
16 admission tickets under an agreement between the ~~ticker~~ ticket
17 seller and the recipient;

18 ~~4.~~ 6. "Person" means any individual, partnership, corporation,
19 limited liability company, other organization, or any combination
20 thereof;

21 ~~5.~~ 7. "Place of entertainment" means any privately or publicly
22 owned or operated entertainment facility within this state, such as
23 a theater, stadium, museum, arena, park, racetrack, or other place
24 where concerts, theatrical performances, sporting events,

1 exhibitions, shows, or other similar activities are held and for
2 which an entry fee is charged;

3 ~~6.~~ 8. "Presale" means a sale of admission tickets at or below
4 the price printed on the ticket by, or with the permission of, a
5 ticket seller, prior to their release to the general public;

6 9. "Primary ticket seller" means a venue, promoter, or provider
7 authorized to sell tickets to the public at the point of initial
8 sale including, but not limited to, public school districts and
9 nonprofit organizations;

10 ~~7.~~ 10. "Promoter" means a person who organizes financing and
11 publicity for an entertainment event; and

12 11. "Resale" means any second or subsequent sale of an
13 admission ticket, by any method including, but not limited to, in-
14 person, telephone, electronic mail, facsimile, or electronic
15 platforms. Resale shall not include tickets returned to or
16 exchanged by the primary ticket seller;

17 12. "Reseller" means a person or entity that offers or sells an
18 admission ticket after its initial sale;

19 13. "Secondary ticket exchange" means a marketplace, online
20 platform, or other entity facilitating resale of admission tickets;

21 14. "Speculative ticket" means an admission ticket offered for
22 sale that the reseller does not own or possess;

23 15. "Sports" means any athletic competition, contest, or event
24 in which individuals or teams participate in games, matches, or

1 exhibitions of skill, agility, strength, or endurance whether
2 amateur, collegiate, or professional. Sports shall not mean
3 theatrical, musical, or other live entertainment performances, even
4 if occurring in a sports venue;

5 ~~8.~~ 16. "Ticket seller" means a person that makes admission
6 tickets available, directly or indirectly, at an initial presale or
7 sale to the general public, and may include an owner or operator of
8 a place of entertainment, a sponsor or promoter of an event, a
9 sports team participating in an event, a theater company, a musical
10 group, or similar participant in an event, or an employee or agent
11 of any such person; and

12 17. "Total price" means the price paid for an admission ticket,
13 including all mandatory fees, service charges, and taxes, and
14 excluding shipping charges and government-imposed fees.

15 SECTION 3. AMENDATORY Section 2, Chapter 218, O.S.L.
16 2023 (15 O.S. Supp. 2025, Section 774.1), is amended to read as
17 follows:

18 Section 774.1. A. A person shall not:

19 1. Use software or a bot to circumvent, thwart, interfere with,
20 or evade a security measure, access control system, or other control
21 measure on a ticket seller's Internet website; ~~or~~

22 2. Sell software or a bot that is advertised for profit with
23 the express purpose to circumvent, thwart, interfere with, or evade
24

1 a security measure, access control system, or other control or
2 measure on a ticket seller's Internet website; or

3 3. Use or create a bot to:

4 a. purchase tickets for any single Internet admission
5 ticket sale,

6 b. use multiple Internet protocol (IP) addresses,
7 purchaser accounts, or electronic mail addresses to
8 exceed posted ticket limits, or

9 c. circumvent electronic queues, presale codes, sales
10 volume limitations, security or access control
11 measures.

12 B. The user or seller shall be in violation of subsection A of
13 this section if the user or seller knows or should know that:

14 1. The purpose of the software or bot is to circumvent, thwart,
15 interfere with, or evade a security measure, access control system,
16 or other control or measure on a ticket seller's Internet website in
17 order to purchase admission tickets during the initial sale or
18 presale for an event held at a place of entertainment; or

19 2. The use of the software or bot led to the admission tickets
20 being resold on the initial seller's Internet website or an Internet
21 site used for the ~~resell~~ resale of admission tickets for a price
22 above the admission ticket's initial cost.

1 C. Any violation of this section shall constitute an ~~unlawful~~
2 ~~business~~ unfair or deceptive trade practice and shall be subject to
3 the provisions of the Oklahoma Consumer Protection Act.

4 SECTION 4. NEW LAW A new section of law to be codified
5 in the Oklahoma Statutes as Section 774.2 of Title 15, unless there
6 is created a duplication in numbering, reads as follows:

7 A. A primary ticket seller, secondary ticket exchange, or
8 reseller shall clearly and conspicuously disclose at the point of
9 selection:

10 1. The total price, including all mandatory fees and taxes;

11 2. Itemization of base price, face value, service fees, and
12 taxes; and

13 3. Seat location or section, row, and seat number, if
14 applicable.

15 B. 1. No reseller shall offer or sell a speculative ticket or
16 more than one copy of the same ticket for an event.

17 2. Admission tickets shall not be resold prior to the initial
18 public sale. Complimentary admission tickets shall not be resold by
19 ticket exchanges.

20 3. Artists, venues, and private ticketing providers may
21 restrict transferability if terms and conditions are clearly
22 disclosed and acknowledged by the purchaser prior to sale.

23 4. Tickets shall be considered licenses. Venue operators may
24 enforce policies regarding conduct, behavior, public health, safety,

1 or age, and may establish limits on the quantity of tickets
2 purchased.

3 C. 1. A primary ticket seller, secondary ticket exchange, or
4 reseller shall issue a full refund within ten (10) days if the:

- 5 a. event is canceled,
- 6 b. ticket is counterfeit or invalid,
- 7 c. ticket location does not conform to the description
8 provided at the time of purchase, or
- 9 d. ticket is not made available prior to the event.

10 2. Pursuant to paragraph 1 of this subsection, a nonprofit
11 organization may offer the choice to donate the cost of the
12 admission ticket to the nonprofit organization, exchange to another
13 performance or event, or receive a refund subject to the terms of
14 the organization's refund policy.

15 3. The venue shall provide contact information for the Attorney
16 General if the purchaser presents an invalid ticket.

17 4. Nothing in this subsection shall be construed to alter any
18 rights or obligations under federal payment card laws including, but
19 not limited to, Regulation E of 12 C.F.R., Part 1005.

20 D. No person, resale platform, reseller, or operator of any
21 website purporting to sell or offer for sale event tickets shall:

- 22 1. Use or display, without authorization, the name, mark, logo,
23 likeness, or intellectual property of an artist, venue, or event
24 organizer in promotional materials, social media, or advertisement;

1 2. Imply affiliation or endorsement with a venue, team, or
2 artist, including the use of the word "official", unless authorized
3 in writing; or

4 3. Engage in commercial representations that are reasonably
5 likely to mislead consumers.

6 E. Any violation of this act shall constitute an unfair or
7 deceptive trade practice and shall be subject to the provisions of
8 the Oklahoma Consumer Protection Act.

9 F. Any aggrieved person may bring a civil action for actual
10 damages and restitution. The court may award court costs and
11 attorney fees to a prevailing party.

12 G. Nothing in this act shall be construed to include sports in
13 the provisions of this act.

14 SECTION 5. This act shall become effective November 1, 2026.

15 COMMITTEE REPORT BY: COMMITTEE ON BUSINESS AND INSURANCE
16 March 5, 2026 - DO PASS AS AMENDED BY CS

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